



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

May 10, 2023

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 21137
(FIRST REVISION)

EXPIRATION DATE: 2027-04-30

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: DGM Italia Srl
Vignate, Italy

US AGENT: Ferrari North America
Englewood Cliffs, NJ

2. PURPOSE AND LIMITATION:

a. This special permit authorizes the transportation in commerce of lithium ion batteries in excess of 35 kg net weight aboard cargo-only aircraft. This special permit provides no relief from the Hazardous Materials Regulations (HMR) or the International Civil Aviation Organization's Technical Instructions for the Safe Transport of Dangerous Goods by Air (ICAO TI) other than as specifically stated herein. The most recent revision supersedes all previous revisions.

b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.

c. This special permit serves as an approval under Special Provision A99 of the ICAO TI as a "Competent Authority Approval" as defined under 49 CFR §107.1.

d. No party status will be granted to this special permit.

3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.

Tracking Number: 2023025103

4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.101 Column (9B) in that the net weight of lithium ion batteries per package may not exceed 35 kg, except as provided herein.
5. BASIS: This special permit is based on the application of DGM Italia Srl dated February 7, 2023, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Lithium ion batteries <i>including lithium ion polymer batteries</i>	9	UN3480	N/A

7. SAFETY CONTROL MEASURES:
- a. OPERATIONAL CONTROLS:
- (1) Each battery identified as F173 HV has a nominal energy rating of 7.9 kWh as described in DGM Italia Srl's application dated November 2, 2020 and on file with the Office of Hazardous Materials Safety (OHMS).
- (2) Cells and batteries must be protected against short-circuiting.
- (3) Cells or batteries connected in parallel must be equipped with an effective means to prevent dangerous reverse current flow.
- (4) All of the batteries must be offered at a state of charge not greater than 30% for transportation by cargo aircraft.
- b. TESTING REQUIREMENTS: Each cell and battery must be a type that has successfully passed the required tests in accordance with the UN Manual of Tests and Criteria.

- c. PACKAGING:
- (1) Inner Packaging – Each battery must be placed in non-metallic plastic bag that completely encloses the battery.
 - (2) Outer Packaging – The inner packaging must be placed in a UN specification 4D plywood box meeting the Packing Group II performance level.
 - (3) The packaging must comply with the requirements of Section 1A in ICAO TI Packing Instruction 965.
 - (4) Each package must not contain more than one battery per outer package.
 - (5) The net weight of battery within each package must not exceed 77 kg.
8. MARKING REQUIREMENTS: Each package, and overpack if used, prepared under the provisions of this approval must be plainly marked with special permit number “DOT-SP 21137”.
9. SPECIAL PROVISIONS:
- a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.
 - b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
 - c. This special permit in no way affects the need to obtain any required authorizations from other agencies of the United States Government or from the competent authorities of countries of origin, transit, destination, and the State of Operator.
 - d. The grantee must maintain the following record and upon request make this record available to DOT representatives or enforcement officials. The record must contain a listing and number of shipments made to include:
 - (1) Dates of shipment; and
 - (2) Description of each type of shipment.
10. MODES OF TRANSPORTATION AUTHORIZED: Cargo-only aircraft.

11. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each aircraft used to transport packages covered by this special permit. The shipper must furnish a copy of this special permit to the air carrier before or at the time the shipment is tendered.
12. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)— "The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

13. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this

special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "William Schoonover", is written over a faint, light blue circular stamp.

for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: JN